

notice of this Petition. Petitioner must file proof of service, or a declaration which sufficiently details new efforts to locate and serve the father, at least five days before the future court date.

This matter is continued to **October 19, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause (“Amended OSC”) for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date. No appearance is necessary on today’s calendar.

IN RE: RUIZ

CASE NUMBER: 26CV-0210906

Tentative Ruling on Petition for Change of Name: Petitioner Shawnee Blue Ruiz seeks to change her name to Shawnee Blue Cross. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

SKAGGS VS. MITCHELL, ET AL.

CASE NUMBER: 24CV-0205961

Tentative Ruling on Motion for Attorney Fees: Plaintiff moves for an order awarding attorney fees and costs incurred for the common benefit of all owners in this partition action, pursuant to CCP §§ 874.010 and 874.040. The motion is unopposed.

CCP § 874.010 provides that the costs of partition include the reasonable attorney fees incurred or paid by a party for the common benefit. CCP § 874.040 provides that the court shall apportion the costs of partition among the parties in proportion to their interests, or as may be equitable. Here, the Court entered Interlocutory Judgment Granting Partition by Sale on March 30, 2026. That Judgment provides for the award of reasonable attorney fees and costs incurred for the common benefit of all owners in amount to be determined on motion. The Judgment further provides for the deduction of the awarded fees and costs from the proceeds of the sale prior to distribution to the parties.

The Court finds that the attorney fees sought are reasonable. The hourly rate for counsel (\$325) and for the paralegal (\$125) is within the range typically awarded for comparable work in Shasta County. Additionally, the request is supported by a Declaration of Counsel and detailed billing records. The hours billed are reasonable. The Declaration of Counsel also provides an itemized list of expenses. These are recoverable with the exception of costs for printing (\$94.25) and mailing (\$280.22). CCP § 1033.5(b)((3) provides that postage and photocopying charges are not allowable costs. Therefore, the total award will be reduced by \$374.47.

The Motion is **GRANTED**. Attorney fees and costs in the total amount of \$21,802.50 are awarded. Pursuant to the Court’s March 30, 2026 Judgment, this amount is to be deducted from the proceeds of the sale of the subject property prior to distribution to the parties. The proposed order will be modified.

SP CONTRACTING, INC. VS. HOUSTON, ET AL.

CASE NUMBER: 26CVG-00664

This matter is on calendar for hearing on Defendant/Cross-Complainant’s Demurrer to Plaintiff’s Complaint. On the Court’s own motion, the hearing is continued to **Tuesday, September 8, 2026 at 8:30 a.m. in Department 64**. The clerk has provided notice to all parties. No appearances are

necessary on today's calendar.

WARD, ET AL. VS. VIBRA HEALTHCARE, LLC, ET AL.

CASE NUMBER: 23CV-0203171

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff Hauva Ward moves for an order naming her as successor in interest to her late husband, Richard Ward's claims in this action pursuant to CCP 377.31. The motion is properly noticed and unopposed.

Code of Civil Procedure 377.30 et seq. provides that a cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest.

The Court finds that the causes of action alleged in this matter survive Decedent's death within the meaning of Code of Civil Procedure section 377.20, and that the proposed successor has submitted a declaration satisfying the requirements of Code of Civil Procedure section 377.32, including a certified copy of Decedent's death certificate.

The motion to substitute Hauva Ward as successor in interest for Decedent Richard Ward is **GRANTED**. Plaintiff is granted leave to file an amended complaint reflecting the substitution within 20 days of today's hearing. A proposed order has been lodged and will be executed.

WRIGHT VS. TARGET CORPORATION

CASE NUMBER: 26CV-0210029

This matter is on calendar for hearing on Defendant Target Corporation's Motion to Strike. On the Court's own motion, the hearing is continued to **Tuesday, September 8, 2026 at 8:30 a.m. in Department 64**. The clerk has provided notice to all parties. No appearances are necessary on today's calendar.

9:00 a.m. Review Hearings

BIANCHIN VS. ARIK, MD, ET AL.

CASE NUMBER: 25CV-0208843

This matter is on calendar for status and trial setting. The matter is now at issue and ready to be set for trial. However, it is unclear whether Defendants Dignity Community Care and Foundation Physician Medical Group received notice of today's hearing. The proof of service of notice of hearing on file does not include those two Defendants and their Answer was filed just a week ago. To ensure all parties have sufficient notice, the Court will continue today's review hearing to **Monday, September 21, 2026 at 9:00 a.m. in Department 64** for trial setting. Plaintiff is ordered to give notice to all parties and to file a proof of service. No appearances are necessary today.

LOZANO VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0210630

This matter is on calendar for review regarding status of the case. Defendant County of Shasta has filed a Demurrer which is set for hearing on September 28, 2026. Today's review hearing is therefore continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 64** for review